

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Talero	Team: Squad #8	CCRB Case #: 202107669	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 12/03/2021 7:07 PM, Saturday, 12/04/2021 9:59 AM, Saturday, 12/04/2021 8:00 PM, NA, 11/___/2021 12:00 AM	Location of Incident: § 87(2)(b)	Precinct: 62	18 Mo. SOL 5/1/2023	EO SOL 5/1/2023	
Date/Time CV Reported Mon, 12/06/2021 12:48 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 12/17/2021 9:48 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Marina Genin	18055	968435	062 PCT
2. Officers			
3. PO George Atsaves	14941	960180	062 PCT
4. SGT Ali Hammutoglu	03266	938636	062 PCT
5. PO Justina Morales	23244	969233	062 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Frank Cinolauro	00937	940008	INT FIO PRG
2. DT3 Jean Innocent	02907	945210	INT FIO PRG
3. DT3 Alexander Goldberg	02435	938574	BS GRAND LARC
4. PO Aferdita Sylmetaj	15256	956289	062 PCT
5. PO Dmytro Golub	23382	969745	062 PCT
6. PO Joseph Gibbia	01931	970546	062 PCT
7. PO Fawzi Algahiti	22791	952393	062 PCT
8. DT3 Jelinson Martinez	03884	955135	INT FIO PRG
9. PO Lehr Wiener	09836	970939	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Abuse: On an unknown date in November 2021, Officers threatened to arrest an individual.	
B. Officers	Abuse: On an unknown date in November 2021, Officers threatened to arrest an individual.	
C. PO Justina Morales	Abuse: On December 3, 2021, Police Officer Justina Morales threatened to damage an individual's property.	
D. PO Justina Morales	Abuse: On December 3, 2021 Police Officer Justina Morales threatened to arrest § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
E.PO George Atsaves	Abuse: On December 4, 2021, Police Officer George Atsaves entered § 87(2)(b) in Brooklyn.	
F.PO George Atsaves	Abuse: On December 4, 2021, Police Officer George Atsaves searched § 87(2)(b) in Brooklyn.	
G.SGT Ali Hammutoglu	Abuse: On December 4, 2021, Sergeant Ali Hammutoglu entered § 87(2)(b) in Brooklyn.	
H.SGT Ali Hammutoglu	Abuse: On December 4, 2021, Sergeant Ali Hammutoglu searched § 87(2)(b) in Brooklyn.	
I.PO Marina Genin	Abuse: On December 4, 2021, Police Officer Marina Genin entered § 87(2)(b) in Brooklyn.	
J.PO Marina Genin	Abuse: On December 4, 2021, Police Officer Marina Genin searched § 87(2)(b) in Brooklyn.	

Case Summary

On December 6th, 2021, § 87(2)(b) called IAB and filed this complaint on behalf of himself, his wife, § 87(2)(b) and an unidentified individual. It was received by the CCRB on December 17th, 2021.

On two unknown dates in November of 2021, at § 87(2)(b) in Brooklyn, unknown officers from the 62nd Precinct threatened an unidentified individual with arrest (**Allegation A-B: Abuse of Authority, § 87(2)(g)**).

On December 3rd, 2021, at § 87(2)(b) at approximately 7:07 p.m., Police Officer Justina Morales and Police Officer Lehr Wiener of the 62nd Precinct responded to a 911 call regarding § 87(2)(b) being locked out of the apartment. PO Morales threatened to damage the property of an unidentified individual (**Allegation C: Abuse of Authority, § 87(2)(g)**) and threatened to arrest § 87(2)(b) (**Allegation D: Abuse of Authority, § 87(2)(g)**).

On December 4th, 2021, officers from the 62nd Precinct responded to § 87(2)(b) at approximately 9:59a.m., in response to 911 calls regarding a dispute between § 87(2)(b) and § 87(2)(b). Officers entered and searched the apartment (**Allegation E-H: Abuse of Authority, § 87(2)(g)**). Officers from the 62nd Precinct later returned, entered, and searched the apartment in the process of executing a search warrant (**Allegation I-J: Abuse of Authority, § 87(2)(g)**).

§ 87(2)(b) and § 87(2)(b) were arrested as a result of this incident and were both charged with § 87(2)(b).

§ 87(2)(b) was additionally charged with § 87(2)(b).

Body-worn camera (“BWC”) footage was obtained from the NYPD Legal Bureau. It is in IAs #90-103, and IAs#188-191 (**Board Review 1-21**) and summarized in IAs#193, 197, 201, and 202 (**Board Review 22-25**).

Findings and Recommendations

Allegation (A) Abuse of Authority: On an unknown date in November 2021, Officers threatened to arrest § 87(2)(b)

Allegation (B) Abuse of Authority: On an unknown date in November 2021, Officers threatened to arrest § 87(2)(b)

§ 87(2)(b) testified (**Board Review 26**) that on two unknown dates in November 2021, a woman, § 87(2)(b) gained access to his apartment without his permission. Only § 87(2)(b)'s name was on the lease although his wife, § 87(2)(b) lived there. § 87(2)(b) initially testified that he did not know § 87(2)(b) that she was not on the lease, and never lived at the apartment. He later altered his testimony to say that he met § 87(2)(b) through mutual friends. He said since neither he nor § 87(2)(b) had driver's licenses, § 87(2)(b) paid § 87(2)(b) to help move their belongings into the new apartment, by driving a moving van, over the course of four days. § 87(2)(b) said he would leave to stay with his friends in Manhattan sometime in November, and when he would return § 87(2)(b) would be inside the apartment. § 87(2)(b) told the investigation that she was § 87(2)(b)'s ex-girlfriend.

On one of these unknown dates, § 87(2)(b) returned to the apartment and § 87(2)(b) opened the door. After a brief conversation in which § 87(2)(b) said police let her into the apartment, she left of her own accord. § 87(2)(b) called the superintendent of his

building whose name he did not recall. The superintendent told § 87(2)(b) that an officer told him that he needed to cut the lock he had placed on the door or that they would arrest him.

On another unknown date, § 87(2)(b) returned to the apartment to find § 87(2)(b) at the apartment again and she again left of her own accord. § 87(2)(b) called the superintendent. The superintendent said that officers asked him to cut the lock for § 87(2)(b) and that when he told the police that he did not want to, the police threatened to “lock him up.”

§ 87(2)(b) provided two phone numbers for the superintendent and gave the associated contact name as § 87(2)(b).” On January 25, 2022, a call was placed to the first number and there was no answer. § 87(2)(b) Healy returned the call, denied being a superintendent, and was not familiar with the incident address (**Board Review 27**). On February 03, 2022, a call was placed to the second number which connected to the company “§ 87(2)(b)”. A § 87(2)(b) answered and said he would have the building manager of § 87(2)(b) call.

On February 03, 2022, § 87(2)(b) called (**Board Review 28-29**) the investigation and said there were four superintendents who worked on § 87(2)(b) and said he would ask if any of them were ever asked to cut the lock to Apartment § 87(2)(b) and if any of them interacted with police. That same day § 87(2)(b) called and said § 87(2)(b) interacted with police on the incident date. On February 28, 2022, § 87(2)(b) said (**Board Review 30**) that no other super has come forward describing being threatened with arrest.

§ 87(2)(b) testified (**Board Review 31**) that on December 4, 2022, he was outside of § 87(2)(b) when officers told him not to go near the building and he complied without further incident. § 87(2)(b) said that he had no other interactions with police officers on any other date in relation to Apartment § 87(2)(b). § 87(2)(b) denied that any officer threatened to arrest him. § 87(2)(b) denied speaking with the tenants of Apartment § 87(2)(b) at any point. § 87(2)(b) said that he is the only superintendant named § 87(2)(b).

§ 87(2)(b) was uncooperative with the investigation (see IAs for contact attempts).

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On February 14, 2022, the investigation received a SPIA (**Board Review 32**) and subsequently received various event documents. Event § 87(2)(b) (**Board Review 33**), which occurred on December 3, 2021, describes a 911 call regarding a dispute where maintenance workers were present. The event did not include any identifying information for the maintenance worker. No other event mentioned a lock-out nor maintenance being present.

On May 23, 2022, the investigation received BWC footage (**Board Review 15-21**) for the incident that occurred on December 3, 2021. The footage does not capture any officer threatening to arrest the superintendent.

§ 87(2)(g)

Allegation (C) Abuse of Authority: On December 3, 2021, Police Officer Justina Morales threatened to damage § 87(2)(b)'s property.

PO Morales' BWC (**Board Review 18**) begins with PO Morales and PO Weiner exiting their police vehicle and walking towards a group of people standing in front of § 87(2)(b) at the 01:00 minute mark. § 87(2)(b) a female neighbor, and a male neighbor, stand by the apartment door and a Hispanic woman and a Hispanic man stand nearby a golf cart. § 87(2)(b) and her female neighbor say that § 87(2)(b) is locked out of her apartment and her dog is inside and that no one inside the apartment is answering. § 87(2)(b) says her name is on the lease and that she moved into the apartment in November with her ex-boyfriend. She also says that she forgot her keys inside the apartment, and that maintenance will not open the door. § 87(2)(b) does not show proof of residence and says that all her things are inside the apartment.

At 04:50, PO Morales approaches the Hispanic male and says, "her name is on the lease, she needs to get into the apartment, whether someone is in there or not refusing to let her in. We can't physically bring it down. Unless you want the fire department to come start kicking in doors, can you just let her in." PO Morales also says, "Can you just open the door for her because if not were gonna have to call the fire department and they're gonna start breaking down doors." At 05:50, PO Morales says, "are you guys gonna open it or should I get fire department to break it down." The Hispanic female says that she needs to call their manager as this issue had happened in the past and the Hispanic male almost got fired.

At 07:25, the Hispanic female hands PO Morales a cell phone and PO Morales speaks with the building manager. At 09:55, PO Morales says "Listen if you guys wanna do it like that she may go ahead, and call FD and they can come break down the door... all I can do is ask for you guys to open it. If not, I can't tell you what happens next once I leave." At 10:25, PO Morales and PO Weiner listen to their police radio and run towards their vehicle leaving the apartment building.

PO Morales testified (**Board Review 34**) that she responded to a dispute at the incident location and that when she arrived § 87(2)(b) told her she was locked out. PO Morales initially testified that § 87(2)(b) said she had previously called the fire department to gain access to the apartment and that she may have "left something on" inside of the apartment. PO Morales said she told the superintendent and the owner of the building that she would call FDNY to break down the door because she wanted to relay to the superintendent and the owner of the building that § 87(2)(b) had previously called FDNY and that she could potentially do so again. In addition, PO Morales said the severity of the situation called for FDNY to ensure the safety of § 87(2)(b) and verify the safety of the apartment.

During a subsequent CCRB interview (**Board Review 35**), PO Morales was shown her BWC footage described above, and she recanted her initial testimony. She said that at no point in the incident did § 87(2)(b) say that she called the fire department, nor did she say she may have left something on inside of the apartment. PO Morales said she raised the issue of calling FDNY on her own and that sometimes the fire department helps people gain access to apartments. When asked for her reasoning behind the statement, PO Morales said that § 87(2)(b) was out in the cold and that her dog was locked in the apartment by herself. PO Morales said she felt bad for § 87(2)(b) and wanted to help her gain access. There was no other reason to call FDNY.

NYPD Event number § 87(2)(b) notes that § 87(2)(b) called 911 reporting a dispute with maintenance regarding opening her apartment door (**Board Review 33**).

When a uniformed member of the service has probable cause to believe that a person has been unlawfully evicted and the violator refuses to allow them to re-enter, the violator should be

arrested, and the evicted person should be referred to the NYC Department of Homeless Services (DHS). NYPD Patrol Guide, Procedure 214-12 (**Board Review 36**).

The emergency exception permits officers to enter a protected space when they have reasonable grounds to believe an emergency is at hand and there is an immediate need for their assistance to protect life or property. People v. Ormanian, 55 Misc. 3d 566 (2016) (**Board Review 37**).

Police officers may damage property only if doing so is reasonably necessary to carry out their duties, per Onderdonk v. State 170 Misc. 2d 155 (1996) (**Board Review 38**).

§ 87(2)(g)

Allegation (D) Abuse of Authority: On December 3, 2021, Police Officer Justina Morales threatened to arrest § 87(2)(b)

PO Morales BWC (**Board Review 19**) shows PO Morales and PO Weiner enter an apartment building and approach § 87(2)(b) and her two neighbors at the 1:25 minute mark. At 01:54, PO Morales says, “I don’t know what prior stuff you have with your ex... If he’s in that apartment and I have to come back for another job, everybody’s going...” In between 2:10 and 5:00, PO Morales and PO Weiner knock on apartment § 87(2)(b) and talk with § 87(2)(b) and her two neighbors about who lives in the apartment. § 87(2)(b) says that she lived in the apartment with her ex-boyfriend until his ex-wife came to live with them and that they have been disputing since then. At 05:20, PO Morales says, “If this is an ongoing thing... if they break down the door and something happens and there’s someone inside everyone’s going to get arrested cause this...” § 87(2)(b) says that she just wants to make sure her dog, who is inside of the apartment, is okay. PO Morales asks for her last name and § 87(2)(b) spells it out for her. At 08:30, PO Morales tells § 87(2)(b) to call police when maintenance arrives and that they would return to verify that she lived at the address. At 09:00, PO Morales and PO Weiner exit the building.

PO Morales acknowledged (**Board Review 34-35**) that she threatened to arrest § 87(2)(b). She said that if § 87(2)(b) did not have a right to the apartment and gained access, that she would be guilty of trespass.

A person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises. NY CLS Penal Code, 140.05 (**Board Review 39**).

A warrantless arrest can be made for any crimes made in the presence of a police officer or if they have reasonable cause that the arrested person committed the crime. NYPD Patrol Guide, Procedure 208-01 (**Board Review 40**).

§ 87(2)(g)

Allegation (E) Abuse of Authority: On December 4, 2021, Police Officer George Atsaves entered § 87(2)(b) in Brooklyn.

Allegation (F) Abuse of Authority: On December 4, 2021, Police Officer George Atsaves searched § 87(2)(b) in Brooklyn.

Allegation (G) Abuse of Authority: On December 4, 2021, Sergeant Ali Hammutoglu entered § 87(2)(b) in Brooklyn.

Allegation (H) Abuse of Authority: On December 4, 2021, Sergeant Ali Hammutoglu searched § 87(2)(b) in Brooklyn.

§ 87(2)(b) testified (**Board Review 26**) that he returned to the apartment with § 87(2)(b) and his keys did not work. § 87(2)(b) opened the front door to his apartment and § 87(2)(b) told § 87(2)(b) to call the police and left, which he said was because § 87(2)(b) had reported him to the police on an earlier date. After § 87(2)(b) left, § 87(2)(b) allegedly punched § 87(2)(b) in the face. § 87(2)(b) called the police and left the apartment. Sometime later, an officer called § 87(2)(b) and told her to return to the apartment. When she arrived, an unknown number of officers were already inside the apartment and told her that they found fraudulent and illegal materials in the dining room (which § 87(2)(b) alleged § 87(2)(b) brought to the apartment while they were not home). § 87(2)(b) and § 87(2)(b) were both arrested.

PO Atsaves BWC (**Board Review 03**) begins with PO Atsaves and PO Gibbia entering the main lobby of § 87(2)(b) and approaching Apartment § 87(2)(b). PO Atsaves calls the callback number for the 911 caller. § 87(2)(b) answer and tells the officers to go to § 87(2)(b). The officers exit § 87(2)(b), walk over to § 87(2)(b) enter the building, and approach Apartment § 87(2)(b).

At 04:55, § 87(2)(b) opens the apartment door from the inside and says, “Hello officers, they told me to call when the kid returned home. He was just here but he heard me calling the police, so he left” at the 04:55 minute mark. PO Atsaves says, “Do you mind if we come in and just take a report for you today?” § 87(2)(b) says, “Yeah” and opens the door wider for them. The officers take a few steps inside while § 87(2)(b) takes her dog, moves her to the bedroom, and closes the bedroom door. At 05:35, § 87(2)(b) says she was in the hospital and that when she returned, she found fake social security cards and points towards the wall where they are taped and visible. Below the social security cards are multiple printers and various illicit documents. § 87(2)(b) says that § 87(2)(b) is scamming her friends.

At 6:00, § 87(2)(b) says § 87(2)(b) is her ex-boyfriend and that they moved into the apartment together. She also says that a month after they moved in, § 87(2)(b)'s ex-wife moved in. At 07:00, § 87(2)(b) says § 87(2)(b) is wanted because he was robbing people, assaulting § 87(2)(b) and was stealing motorcycles. At 07:50, § 87(2)(b) tells PO Atsaves that the lease is in both hers and § 87(2)(b)'s name. At 08:20, PO Atsaves asks § 87(2)(b) for identification and § 87(2)(b) looks through her bag to provide it. As she looks, she repeats that § 87(2)(b) and § 87(2)(b) are making fake social security cards, fake identifications, and fake checks.

At 12:25, PO Atsaves approaches the front door which is pushed open by PO Genin and PO Algahiti. PO Genin asks what happened and then asked § 87(2)(b) if she can enter. § 87(2)(b) agrees. At 13:50, Sgt. Hammutoglu and PO Gollub enter the apartment. At 18:25, Sgt. Hammutoglu picks up documents from a desk. He examines them and identifies multiple fake social security cards, credit cards, and IDs. At 22:00, § 87(2)(b) approaches the apartment crying. She is holding a grey rag up to the right side of her head and has blood on her face and hands. At 24:00, Sgt. Hammutoglu motions to the printers and fake documents and says, “Is this you?” PO Genin shines a flashlight at § 87(2)(b). § 87(2)(b) denies that the materials are hers and says that they had been there for about a week. § 87(2)(b) recounts how § 87(2)(b) punched her. At 57:45, § 87(2)(b) asks if she is being arrested. Sgt. Hammutoglu says everyone is getting charged and that § 87(2)(b) is getting an additional assault charge. At 1:04:00, Sgt. Hammutoglu directs an officer who is out of frame to stay at the apartment and the rest of the officers exit the apartment with § 87(2)(b) and § 87(2)(b).

§ 87(2)(g)

Per People v Quijano, 66 A.D.3d 561 (2009), an officer may obtain consent to enter and search a dwelling if they reasonably believe that a spouse had apparent authority to consent. This is true even if the rightful inhabitant of the dwelling tried to exclude said spouse, as long as it appeared that they were still a lawful occupant (**Board Review 41**).

According to Payton v. New York, 445 U.S. 573 (1980), officers may seize property in plain view, as it involves no invasion of privacy and is presumptively reasonable, assuming that there is probable cause to associate the property with criminal activity (**Board Review 52**).

§ 87(2)(b) answered a phone call by PO Atsaves and directed him to the correct address. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (I) Abuse of Authority: On December 4, 2021, Police Officer Marina Genin entered § 87(2)(b) in Brooklyn.

Allegation (J) Abuse of Authority: On December 4, 2021, Police Officer Marina Genin searched § 87(2)(b) in Brooklyn.

§ 87(2)(b) testified (**Board Review 26**) that after the incident he saw § 87(2)(b) § 87(2)(b) stating that officers executed a search warrant at his apartment and recovered fraudulent items. A subsequent google search returned the tweet in question which confirmed § 87(2)(b)'s testimony (**Board Review 45**).

PO Genin's BWC (**Board Review 07**) captures officers executing a search warrant at § 87(2)(b)

Search Warrant# § 87(2)(b) (**Board Review 42**), issued by Judge § 87(2)(b) on § 87(2)(b), and obtained by PO Marina Genin, authorized an entry of § 87(2)(b) in Brooklyn, between the hours of 6:00am and 12:00am (midnight), for officers to search for and seize any, forged licenses, forged social security cards, any computers, electronic storage devices that may contain stolen personal identification information and credit card numbers.

Article 690.50 of the Criminal Procedure Law (**Board Review 43**) permits officers who have obtained a valid judge-issued search warrant to enter and search the location.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 44**).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 46**).
- § 87(2)(b) has been party to one additional CCRB complaint and has been named as a victim of 6 allegations (**Board Review 47**):
 - § 87(2)(b)
- PO Morales has been a member-of-service for two years and this is the first CCRB complaint to which she has been a subject.
- PO Atsaves has been a member-of-service for six years and this is the first CCRB complaint to which he has been a subject.
- PO Genin has been a member-of-service for three years and has been a subject in two additional CCRB complaints and four allegations, none of which were substantiated. PO Genin's CCRB history does not reflect any apparent pattern pertinent to this investigation.
- Sgt. Hammutoglu has been a member-of-service for 17 years and has been a subject of four additional CCRB complaints and five allegations, none of which were substantiated. ■

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation § 87(2)(g)
- As of November 22, 2022, the Notice of Claim inquiry with the NYC Comptroller's Office was still pending (**Board Review 48**). The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Squad: 08

Investigator:	<u>Daniel Talero</u>	<u>Inv. Daniel Talero</u>	<u>11/23/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Ethan De Angelo</u>	<u>IM Ethan De Angelo</u>	<u>11/28/2022</u>
	Signature	Print Title & Name	Date